

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Murder Reference No. 527 of 2010

(The State v. Muhammad Usman)

Criminal Appeal No. 2331 of 2010

(Muhammad Usman v. The State etc)

Criminal Appeal No. 2459 of 2010

(Muhammad Yousaf v. Imran ul Hassan etc)

JUDGMENT

Date of hearing:	<u>23.09.2015.</u>
Appellant by:	<u>Mr. Azam Nazir Tarar, Advocate.</u> (In Crl. Appeal No. 2331-2010).
Appellant by:	<u>Mr. Falak Sher Nagra, Advocate.</u> (In Crl. Appeal No. 2459-2010).
Complainant by:	<u>Mr. Falak Sher Nagra, Advocate.</u> (In Crl. Appeal No. 2331-2010).
State by:	<u>Mr. Humayoun Aslam, Deputy Prosecutor</u> <u>General for the State.</u>

Aalia Neelum, J.- Muhammad Usman son of Faiz-ul-Hassan, Caste Jappa, resident of Chak No.125/JB, Tehsil and District, Jhang (Crl. Appeal No.2331 of 2010) along with Imran-ul-Hassan (since acquitted), Ghulam Shabbir (since acquitted), Zahoor Ahmad (since acquitted), Faiz-ul-Hassan and Manzoor Ahmad (since acquitted) being involved in case F.I.R. No.905 dated 08.12.2007, offences under Section 302, 109, 148, 149 P.P.C., registered at Police Station, Saddar Chiniot and were tried by Mr. Arshad Hussain Bhutta, learned Additional Sessions Judge, Gujranwala. The learned trial

court seized with the matter in terms of judgment dated 18.09.2010 convicted the appellant under Section 302 (b), P.P.C., and sentenced to death and to pay a sum of Rs.4,00,000/-as compensation to the legal heirs of the deceased and in default whereof to further undergo simple imprisonment for the period of six months.

2. Feeling aggrieved by the judgment of the learned trial court, Muhammad Usman appellant has assailed his conviction through filing Crl. Appeal No.2331 of 2010. The learned trial court forwarded Murder Reference No.527 of 2010 for confirmation of death sentence inflicted upon the convict. Whereas Muhammad Yousaf son of Akbar Ali, complainant/appellant feeling aggrieved by the same judgment of the learned trial court, has preferred Criminal Appeal No.2459 of 2010 against the acquittal of respondents/accused, namely (1) Imran-ul-Hassan, (2) Ghulam Shabbir, (3) Faiz-ul-Hassan, (4) Manzoor Ahmad and (5) Zahoor Ahmad. As all the matters are arising out of one and the same judgment of the learned trial court, therefore, these are being disposed of through this consolidated judgment.

3. Precisely the facts leading to the conclusion of all the matters are that in the F.I.R., (Exh.PB/1) lodged on the complaint (Exh.PB) of Muhammad Yousaf son of Akbar Ali (PW-2) on 08.12.2007 is that, on 04.12.2007 at about 1 ½ p.m. (noon), he (the complainant) along with his brother Muhammad Younas (the deceased) and Hafeez ullah (PW-given up) were sitting on *bajri/granite* near main *chowk* of Chak No.125/JB and were having a talk qua themselves. Suddenly, accused persons (1) Muhammad Usman, (2) Muhammad Imran, (3) Ghulam Shabbir, all armed with repeater 12 bore (4) Zaheer armed with rifle and (5) Hasnain Ali armed with pistol 30-bore emerged there from two sides of *chowk* while raising *lalkaras*. The accused-Muhammad Usman maintained that Younas be eliminated and had made fire with his repeater 12-bore which landed near the right eye of

Younas, Muhammad Imran fired with his repeater 12-bore which landed on the right side of head of Younas, Ghulam Shabbir fired with his repeater which landed on the right knee of Younas whereas Zahoor (since acquitted) and Hasnain (since acquitted) were indulged in aerial firing and created harassment. Brother of the complainant on receiving injuries rushed towards shop of Mumtaz Hussain (not produced) just to save his life and he fell down inside the shop. The accused persons fired upon the shop which hit the shutter, walls and other goods present in the shop and created terror. Accused persons also threatened that if anyone came ahead, he will also be eliminated. On hearing hue and cry, Muhammad Yousaf son of Shahamand (PW-3) and Javed Iqbal (PW-given up) reached at the spot and witnessed the alleged occurrence. Accused persons thereafter fled away from the place of alleged occurrence. The motive behind the occurrence was that on 02.12.2007 at 7:00 a.m. a brawl took place between Muhammad Younas etc and accused persons Muhammad Usman etc and Muhammad Younas had slapped and disgraced Usman etc, whereupon, accused persons threatened to take revenge of the disgrace. Due to this motive, the accused persons on the abetment of Faiz Ahmad and Manzoor, committed this occurrence.

4. On 03.12.2007 at evening time, Akbar Ali (PW-not produced) and Muhammad Nawaz (PW-given up) were sitting in the *baithak* of Faiz Ahmad to patch up the incident taken place on 02.12.2007 where all the accused were also sitting. When Faiz Ahmad and Manzoor Ahmad, accused stated that after taking revenge of insult, they will think over for patch-up. For taking revenge, the accused persons have fired at brother (Younas) to kill him. Muhammad Younas was taken to the Tehsil Headquarter Hospital, Chiniot and got medical certificate after his medical examination. Due to critical condition, the Doctor referred Younas (then injured) to

Allied Hospital, Faisalabad, who at that time, was fighting with life and death. Due to this reason, the F.I.R was delayed.

5. On the written complaint (Ex.PB) of the complainant-Muhammad Yousaf (PW-2) F.I.R (Ex.PB/1) was chalked out by Nasrullah, H.C/170 (PW-7). Thereafter investigation was entrusted to Muhammad Arif, S.I. (PW-11), who visited the place of occurrence and prepared un-scaled site plan (Ex.PM), thereafter recorded statements of the prosecution witnesses. On 11.12.2007, the Investigating Officer (PW-11) telephonically received information that injured-Muhammad Younas has expired in the Allied Hospital, Faisalabad. He (PW-12) visited Allied Hospital, Faisalabad and prepared injury statement (Ex.PG) and inquest report (Ex.PH). The dead body of deceased-Muhammad Younas was escorted by Rizwan Ali 829/Constable (PW-10) for autopsy and after postmortem examination, last worn clothes i.e. *shalwar* (P-1) and *Qameez* (P-2) were taken into possession by the Investigating Officer (PW-11) vide recovery memo Ex.PN and a phial. During investigation, the complainant-Muhammad Yousaf (PW-2) on 12.12.2007 produced last worn clothes of the deceased which were worn by the deceased at the time when he received injuries and same were taken into possession by the Investigating Officer through recovery memo Ex.PA. Thereafter Riaz Ahmad, Draftsman (PW-9) on 31.12.2007 visited the place of occurrence and took rough notes on the pointing of the PWs. Thereafter on 11.01.2008, the Draftsman (PW-9) prepared scaled site plans (Ex.PL and Ex.L/1) to the Investigating Officer. On 10.02.2008, he arrested the accused-Muhammad Usman and recovered rifle 7MM (P-6) from his possession and he (PW-11) secured the same through recovery memo Ex.PC while preparing the site plan of place of recovery (Ex.PC/1). He (PW-11) also recorded statements of PWs. On the same day i.e. 10.02.2008 he (PW-11) also arrested the accused-Imran-ul-Hassan (since acquitted) and also

recovered repeater 12-bore (P-3) which was taken into possession by him (PW-11) through recovery memo (Ex.PD) while preparing the site plan of place of recovery (Ex.PD/1). Thereafter investigation came up before Muhammad Yousaf, S.I. (PW-12) on 14.02.2008. On 24.02.2008, during the course of investigation, after disclosure, accused Zahoor Ahmad led to the recovery of 12-bore gun (P-4) and he (PW-12) secured the same through recovery memo (Ex.PJ) while preparing the site plan of place of recovery (Ex.PJ/1). On the same day i.e. 24.02.2008 after disclosure, accused-Ghulam Shabbir (since acquitted) led to the recovery of repeater 12-bore gun (P-5) and he (PW-12) secured the same through recovery memo (Ex.PK) while preparing the site plan of place of recovery (Ex.PK/1). He (PW-12) also recorded statements of PWs.

6. Having found the appellant and others guilty, the Investigating Officer prepared report under Section 173 Cr.P.C on 04.03.2008 and sent the same to the court of Sessions en-routed through Illaqa Magistrate as provided under Section 190 (2) of Cr.P.C. The accused were charge-sheeted by the learned trial court in terms of order dated 06.09.2008, to which they pleaded not guilty and claimed trial. The prosecution in order to advance its case, produced as many as eighteen (18) prosecution witnesses. Muhammad Yousaf son of Akbar Ali (PW-2) is the complainant of the case, whereas his testimony was supplemented by Muhammad Yousaf son of Shahamand (PW-3). On presentation of written complaint, Nasrullah Khan, H.C (PW-7) had chalked out formal F.I.R and Riaz Ahmad, Draftsman (PW-9) had prepared scaled site plan. The Investigation in this case was conducted by Muhammad Arif, S.I. (PW-11) and Muhammad Yousaf, S.I. (PW-12).

7. Dr. Ejaz Hussain (PW-6) on 04.12.2007 conducted the Medicolegal Examination of injured-Muhammad Younas and prepared Medicolegal Certificate (Exh.PH).

8. Dr.Muhammad Shareef (PW-5) on 11.12.2007 at 11:45 p.m. (night) had conducted postmortem examination upon the dead body of Muhammad Younas and observed following injuries on his person:

INJURIES.

A lacerated wound of 1 x 1 cm with inverted edges on the right side of head at a distance of 4 cm from right pinna (entry wound).

A lacerated wound of $\frac{1}{2}$ x $\frac{1}{2}$ cm with inverted edges on the right temple, close to right eye brow (entry wound).

A lacerated wound of $\frac{1}{2}$ x $\frac{1}{2}$ cm partially healed and slightly crusted. On the outer-side of right knee.

After conducting the postmortem examination, the doctor rendered the following opinion.

OPINION.

In his opinion, the cause of death in this case was due to cardiopulmonary arrest as a result of injury No.1 causing brain death. Injury No.1 was sufficient to cause death in any ordinary course of nature. All the injuries were ante mortem and caused by fire arm. One Metallic foreign body (pellet) recovered from skull sealed and handed over to the above said constable.

The probable time between injury and death was seven days and between death and postmortem was five hours.

On completion of postmortem, I handed over a well stitched dead body along with carbon copy of post mortem report, signed police papers, one sealed vial and last worn clothes of the deceased to the above said Constable.

9. Learned Deputy District Public Prosecutor gave up PWs Javed Iqbal, Hafeez ullah, Muhammad Nawaz son of Muhammad, Muhammad Nawaz 939, Bashir Khan and Mumtaz Hussain on 26.02.2010 being un-necessary and closed the prosecution evidence on 07-07-2010.

10. The accused-appellant was also examined under Section 342 Cr.P.C wherein neither he opted to adduce evidence in his defence nor to appear as his own witness in terms of Section 340 (2) Cr.P.C in disproof of the allegations levelled against him in the prosecution evidence. While replying to the question as to why this case against him and why the PWs have deposed against him, the accused-appellant made following deposition:

"I am innocent. In fact one Faisal Jappa a close relative of the complainant party was murdered prior to the occurrence and the complainant party had suspicion that I was responsible for his murder being close friend of his enemies. On the day of occurrence I along with Ahmed Sher Jappa and Khalid s/o Shera Muslim Sheikh were passing in front of the shop of Mumtaz. Younas since deceased along with Manzoor s/o Yousaf and three unknown persons were present in the shop of Mumtaz who made firing upon us and in retaliation, Ahmed Sher Jappa and Khalid s/o Shera Muslim Sheikh who were also armed with fire arms fired at Younas since deceased and others. The firing continued for

about 45 minutes. Manzoor s/o Yousaf also sustained injuries in the occurrence. He was neither cited as a witness nor produced during investigation just to suppress the true facts. It is noteworthy that Younas since deceased was a hardened and desperate criminal having lot of criminal record admitted by the prosecution and Manzoor s/o Yousaf was also a hardened criminal who had assaulted upon me, Khalid s/o Shera and Ahmed Sher Jappa. During Investigation it was also concluded that the complainant party were aggressors and we were aggressed upon. It is also pertinent to point out that Mumtaz the shop keeper who is close relative of the complainant party did not come forward to support the case of prosecution. I was involved by the complainant party in this case falsely.”

11. The learned trial court after evaluating the evidence available on the record and in the light of arguments advanced from both sides, found that the prosecution version proved beyond shadow of reasonable doubt against the accused-appellant, resulting into his conviction in the afore-stated terms.

12. We have heard the arguments advanced by the learned counsel for the parties. We have also gone through the record with able assistance of learned counsel for the appellant and learned counsel for the complainant as well as learned Deputy Prosecutor General.

13. The occurrence in this case as per F.I.R (Ex.PB/1) took place on 04.12.2007 at 1:30 p.m. (noon) and the incident was reported to the police on 08.12.2007 at 3:15 (noon). The police station Saddar, District, Chiniot was at a distance of 8 ½ miles from the place of occurrence. The occurrence took place in the main *chowk* of Chak No.125/JB in front of shop of Mumtaz Hussain. The complainant did not file any *rapt* regarding the occurrence. There is delay of five (5) days in filing the complaint. From the prosecution evidence, it reveals that the complainant (PW-2) took Muhammad Younas (then injured) to the

Civil Hospital, Chiniot. Muhammad Yousaf-complainant (PW-2) deposed that *“if one goes from the place of occurrence to Civil Hospital, Chiniot, Tehsil Chowk falls in the way. The police station saddar Chiniot is near the said chowk. None from us alighted from the car to report the matter to the police.”* Whereas Yousaf son of Shahamand (PW-3) deposed that *“I had not accompanied the injured to the hospital.”* It is the case of the prosecution that the complainant (PW-2) remained busy in the treatment of his injured brother-Muhammad Younas and he (PW-2) could not manage to go to the police station for lodging the F.I.R. The alleged incident had taken place at the main *chowk* where prosecution witnesses Hafeez ullah, Haq Nawaz (PW-given up) and Muhammad Yousaf (PW-3) were stated to be present but no one had reported the incident to the police, which had taken place. Yousaf son of Shahamand (PW-3) deposed during cross-examination that *“I had not accompanied the injured to the hospital. There were some PCOs in chak No.125/JB the place of occurrence. I had not informed the police through telephone.”* On the other hand, the complainant (PW-2) deposed during cross-examination that *“the car was arranged through telephonic call. Telephonic call was made by Haq Nawaz. The car was owned by his friend Syed by Caste.”* But they had not informed to the local police about the occurrence, it is established beyond doubts that the prosecution witnesses hold mobile phone but did not inform the police about the occurrence. In this regard, no explanation was furnished by the complainant (PW-2), as to what prevented him, from reporting the incident to the police soon after making call for car. In absence of any explanation for delay of five days, it could be presumed that the same was utilized to concoct story, false implication of accused and introducing of false witnesses. Delay in lodging the First Information Report often results in embellishment, which is creation of after-thought. Therefore, involvement of the accused in the

case is a result of deliberation and consultation. Thus the inordinate delay of five (5) days in reporting the incident to the police had not been satisfactorily explained by the complainant (PW-2) and prosecution witnesses and this fact creates serious doubt regarding the veracity of the case, and it was not safe to base conviction on it.

14. In the above circumstances, it reveals that the First Information Report was recorded subsequent to the time at which it purported to have been recorded and was the result of deliberation and consultation. The complainant-Muhammad Yousaf (PW-2) deposed during cross-examination that “application Ex.PB was drafted by Ahmed Ali-PW (since dead). The said application was drafted in the house of Ahmed Ali-PW situated in Satellite Town, Chiniot. -----Ahmad Ali did not accompany me to the police station for registration of case.”

It is not disputed that Muhammad Yousaf (the injured) was under treatment at Allied Hospital, Faisalabad whereas the complainant (PW-2) instead of going to police station saddar Chiniot, went to the house of Ahmed Ali and got prepared complaint (Ex.PB) which creates considerable doubt about the correctness of the evidence of the complainant (PW-2). The Hon’ble Supreme Court of Pakistan in the case of “Akhter Ali and others v. The State”(2008 SCMR 6) held that”

“It is also an admitted fact that the F.I.R. was lodged by the complainant after considerable delay of 10/11 hours without explaining the said delay. 10/11 hours delay in lodging of F.I.R. provides sufficient time for deliberation and consultation when the complainant had given no explanation for delay in lodging the F.I.R.

15. The ocular account of this case had been furnished by Muhammad Yousaf-complainant (PW-2) and Muhammad Yousaf son of Shahamand (PW-3). Muhammad Yousaf (PW-3) had deposed that his house was at the distance of two acres from the place of

occurrence and the house of Yousaf-complainant is adjacent to his house. Both prosecution witnesses have not stated the reason of their presence at the place of occurrence. Neither Mumtaz Hussain, owner of shop, was produced before the learned trial court, who according to prosecution was present at the spot and in his shop, the deceased-Muhammad Younas fell down and the walls, shutters of the shop and goods of the shop hit with the fires made by the accused ineffectively nor any other shop keeper of the *bazaar* has been examined. Muhammad Yousaf-complainant (PW-2) deposed that the deceased-Muhammad Younas after receiving first fire arm injury near his right eye, second fire made by Imran hit on the right side of the head and third fire arm injury at the knee of right leg runs towards shop of Mumtaz Hussain and fell down in the shop. Whereas Doctor Muhammad Shareef (PW-5) deposed that if some one received fire arm injuries on his head, he would fell on the ground as a result. But this is not the case of prosecution that Muhammad Younas entered in the shop in an injured condition and the shutters of the shop were closed. On perusal of both un-scaled site plan (Ex.PM) and scaled site plan (Ex.PL), it reveals that the place from where bloodstained earth was collected had not been shown. Riaz Ahmad, Draftsman (PW-9) admitted this fact. The Investigating Officer although deposed that he collected bloodstained earth from point (1). Both site plans were silent about the point where Muhammad Younas falls in the shop in an injured condition. It has come in the evidence that deceased Muhammad Younas after receiving injuries, rushed to the shop of Mumtaz Hussain and fell down in the shop. This statement has not been corroborated by Dr. Muhammad Shareef (PW-5). No trial of blood could have been noticed by the Investigating Officer (PW-11) as incident was reported with delay of five (5) days but blood trial could have been noticed by the Investigating Officer (PW-11) in the

shop which could also be secured to corroborate the ocular account. It has come in evidence of the Investigating Officer Muhammad Arif, S.I. (PW-11) that he has not shown in rough site plan whether Muhammad Younas-deceased had sustained injuries while sitting or in standing position, whereas in complaint (Ex.PB), the complainant (PW-2) had mentioned that he (the complainant) along with his brother Muhammad Younas (the deceased) and Hafeez ullah (PW-given up) were sitting on *bajri*/granite when suddenly accused persons (1) Muhammad Usman (2) Muhammad Imran (3) Ghulam Shabbir all armed with repeater 12-bore (4) Zaheer armed with rifle and (5) Hasnain Ali armed pistol 30-bore emerged there from two sides of *chowk* and Muhammad Usman had made fire with his repeater 12-bore which landed near the right eye of Muhammad Younas, Muhammad Imran fired with his repeater 12-bore which landed on the right side of head of Muhammad Younas, Ghulam Shabbir fired with his repeater which landed on the right knee of Muhammad Younas. The complainant (PW-2) while improving his statement deposed that they were sitting near to each other. The fire hit the deceased when he was standing. His description of injuries as per Medicolegal Certificate (Ex.PH/1) and postmortem report (Ex.PG) were result of pellets but none of the prosecution witnesses sitting along with the deceased had received single injury or scratch on their persons. The evidence of the complainant (PW-2) was a belated attempt to improve his testimony and bring the same in the line with the medical evidence to support the case. As all injuries on the body of the deceased were result of straight fires and the same can not be caused in sitting position whereas it is the case of the prosecution that the deceased along with the complainant (PW-2) and Hafeez ullah (PW-given up) were sitting near the *bajri*/granite, when Muhammad Usman fired at the deceased. There is yet another aspect of the case, it is material to

note that PW-2 who is an eye-witness of the incident, does not speak anything about the presence of PW-3 before the incident. However, PW-3 and Javed Iqbal (PW-given up) were attracted to the place of occurrence on the hue and cry of the complainant and others.

16. There were so many omissions and contradictions in the evidence of prosecution witnesses affecting the entire fabric of the prosecution case. The complainant-Muhammad Yousaf son of Akbar Ali (PW-2) is real brother of Muhammad Younas-deceased and Muhammad Yousaf son of Shahamand (PW-3) is paternal uncle of the deceased. The complainant-Muhammad Yousaf (PW-2) asserted that he had got mentioned in his application (Exh.PB) that Imran, Usman and Ghulam Shabbir came from side of one *bazaar* whereas Zahoor and Hasnain accused came at the spot from another *bazaar*, when this deposition was confronted with the application/complaint (Ex.PB) were not found so recorded. Muhammad Yousaf son of Shahamand (PW-3) asserted that he had stated in his statement before the Investigating Officer that from one *bazaar* Usman, Imran and Bashir came at the place of occurrence while from the other *bazaar* Zahoor and Hasnain emerged. When confronted with his statement under Section 161 Cr.P.C (Ex.DA) not found recorded so; that he has not cited in statement before the Investigating Officer that many people came at the place of occurrence and saw the occurrence, when confronted with his statement under Section 161 Cr.P.C (Ex.DA) found so recorded. Thus their (PW-2 & PW-3) credibility, reliability and truthfulness are not above-board to put a worthy reliance upon the same. Their presence at the spot is doubtful in the circumstances mentioned above. The prosecution withheld best evidence available with them and non-production of the material witnesses cast serious doubt on the prosecution case, because non-production of material witnesses suggests that they would not support the prosecution case.

Moreover, appraisal of the prosecution evidence and the plea of the appellant-Muhammad Usman in his statement recorded under Section 342 of Cr.P.C leads us to hold that occurrence has not taken place in the mode and manner as alleged by the prosecution. On the other hand, the plea of appellant has not been established. Neither any evidence in defence has been led by the accused to substantiate his pleas of false implication nor Investigating Officers recorded statements of shopkeepers to separate the truth from the falsehood.

17. As far as the recovery of weapons of offence is concerned, the same is useless to the prosecution for two reasons. Firstly neither any crime empties had been recovered from the crime scene as incident was reported to the police with delay of four (4) days nor same was sent to the Forensic Science Laboratory for obtaining expert opinion. Secondly eye-witnesses had alleged that Muhammad Usman-appellant was armed with repeater 12-bore but instead of repeater 12-bore, a 7-MM rifle (P-6) was recovered from the accused-Muhammad Usman. The recovery of 7-MM rifle (P-6) at the instance of Muhammad Usman and repeater 12-bore (P-3) at the instance of Muhammad Imran can not be used against them, as no crime empty was recovered from the place of occurrence. It could not be said with certainty that the recovered weapons P-6 and P-3 were used during the occurrence.

18. Adverting to the motive aspect of the case, it has been noticed that Muhammad Yousaf-complainant (PW-2) set up a motive in his complaint (Ex.PB) that on 02.12.2007 at 7:00 a.m. a brawl took place between Muhammad Younas etc and accused persons Muhammad Younas etc and Muhammad Younas had slapped and disgraced Usman etc, whereupon, accused persons threatened to take revenge of the disgrace. On 03.12.2007 at evening time when Akbar Ali (PW-given up) and Muhammad Nawaz (PW-given up) were sitting

in the *bathak* of Faiz Ahmad to patch up the incident taken place on 02.12.2007. Faiz Ahmad and Manzoor Ahmad, accused stated that after taking revenge of insult, they will think over for patch-up. But during evidence, no such motive has been established. We have straightway come to the material improvements made by Muhammad Yousaf-complainant (PW-2) and Muhammad Yousaf (PW-3) in their testimonies brought on the record by the defence. Muhammad Yousaf-complainant (PW-2) deposed during cross-examination that *"I got mentioned in my application, the place, the witnesses before whom and reasons for which, the motive occurrence had taken place. Same was confronted with Ex.PB wherein all these facts are not mentioned."* However, the complainant (PW-2) admitted that *"we had heard about the motive incident. I do not know whether the same was witnessed by some persons or not."* He (PW-2) further deposed during cross-examination that *"I had not mentioned in application Ex.PB that on 03.12.2007 we had sent Akbar and Nawaz PWs for compromise to Faiz-ul-Hassan. I had also got it recorded in application Ex.PB that Akbar and Nawaz after hearing conspiracy came back and narrated the story before us. Confronted with Ex.PB wherein it is not so mentioned."* Muhammad Yousaf son of Shahamand (PW-3) deposed during cross-examination that *"I had stated in my statement before the Investigating Officer that motive behind the occurrence was that on 02.12.2007 at 7:00 a.m. Younas deceased (since dead) had given slaps to accused Usman and Imran and he also abused them and accused Usman and Imran and he also abused them and accused Usman and Imran said that they would take revenge of this insult. Confronted with Ex.DA wherein it is not so mentioned. We had not informed the police about the motive incident prior to the occurrence. We did not move any application in this regard to the police."* Akbar Ali (PW-4), the witness of motive part, deposed during cross-examination that *"in my statement before police I had*

stated that the father of Yousaf and his brother had sent to us for the compromise. Confronted with Ex.DA wherein it has not been so recorded, the father and brother of Yousaf had sent to him for compromise talking. In my statement before police Ex.DA, I mentioned that we requested to the accused again and again but all in vain. Confronted with Ex.DA where it is not so recorded. In my statement before thanedar I stated that when we came back from the house of Faiz-ul-Hassan and told to complainant about this compromise talking. Confronted with Ex.DA where it is not so recorded.” In view of material improvements and contradictions, we are constrained to hold that the motive for their occurrence resulting in the murder of the deceased-Muhammad Younas has remained un-proven as has been observed by the learned trial court as well.

19. From the above detailed discussion, we are, however, convinced that the prosecution has failed to establish its case. It seems that the truth was seen buried under the debris and a different story was structured perhaps to lug the appellant into trial under the serious offence. It is often said “that Foulter the crime higher the degree of proof” we have gone through the process of keen examination of the entire material and found compelling reasons as stated above to disgrace with the conclusion reached/recorded by the learned Additional Sessions Judge and also found that the prosecution has miserably failed to prove the guilt of the accused-appellant beyond reasonable doubt. As per dictates of law benefit of every doubt is to be extended in favour of the accused. In the case of **“Muhammad Akram v. The State”** (2009 SCMR 230), it is held as under:-

“Benefit of doubt....Principles----For giving the benefit of doubt it is not necessary that there should be many circumstances creating doubts---
-Single circumstance creating reasonable doubt in a prudent mind about the guilt of accused

makes him entitled to its benefit, not as a matter of grace and concession, but as a matter of right”.

20. We, therefore, **accept in toto Criminal Appeal No.2331 of 2010** filed by Muhammad Usman, appellant, as a result whereof conviction and sentence recorded by the learned trial court vide judgment dated 18.09.2010 is **set aside** and the appellant is ordered to be **acquitted** of the charge in case F.I.R. No.905-2007 dated 18.12.2007, offences under sections 302, 109, 148, 149 P.P.C., registered at Police Station, Saddar, Chiniot and he be directed to be released forthwith if not required in any other case. **Murder Reference No.527 of 2010** is answered in the **negative** and the sentence of death awarded to Muhammad Usman son of Faiz-ul-Hassan, Caste Jappa, resident of Chak No.125/JB, Tehsil and District, Jhang is **not confirmed**.

21. **Criminal Appeal No.2459 of 2010** filed by complainant-Muhammad Yousaf against acquittal of Imran-ul-Hassan, Ghulam Shabbir, Faiz-ul-Hassan, Manzoor Ahmad and Zahoor Ahmad is concerned, for the above-stated reasons, the same has no weight, which is accordingly **dismissed**.

(Sardar Muhammad Sarfraz Dogar)
Judge

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Judge